REAL ESTATE PURCHASE & SALE AGREEMENT

This Real Estate Purchase & Sale Agreement is entered into this _____ [date] between _____ ("Seller"), its heirs, executors, administrators, personal representatives, successors, and **LRG Homes, LLC** ("Buyer"), or assigns regarding the purchase of property described as: _____ ("Property"). Built-in appliances, structural, foundation, roof, plumbing, heating, air conditioning, electrical, mechanical, security, pool/spa systems and components, and any fixtures are included in the sale.

TERMS

1. **Purchase Price.** The Seller agrees to convey the Property to Buyer for the sum of: $ _____ .
2. **Closing.** Closing shall occur as soon as possible and no later than _____ days from acceptance at a time and place designated by Buyer's choice of escrow, title and/or Closing agent. Time is expressly declared to be of the essence of this Agreement except as provided in para. 5. Buyer shall pay all closing costs except for transfer tax (if existing). Closing to be held at: Chicago Title Company. Escrow Company's contact information: Phone: (408) 354-6737.
3. **Earnest money.** Buyer shall deliver an earnest money deposit in the amount of $ _____ to Escrow Company prior to Closing.
4. **Prorations.** Real property taxes and assessments, interest, rents, homeowners' association regular dues and regular assessments, premiums on insurance assumed by Buyer, payments on bonds and assessments assumed by Buyer shall be paid current by Seller from the proceeds of sale (if needed) and prorated between Buyer and Seller as of the Close of Escrow.
5. **Buyer's Extensions.** Seller grants Buyer any extension as needed to address any defects in title or property conditions that may be discovered by Buyer after this Agreement is signed.
6. **Contingencies.** This Agreement is contingent upon Buyer's satisfactory inspection and approval of title and of the physical condition of the Property before Closing.
7. **Examination of Title.** Buyer shall be provided a current preliminary title report at Buyer's expense. Title shall be free of liens, encumbrances, easements, restrictions, rights and conditions of record or known to Seller, except for all matters shown in the preliminary title report which are not disapproved in writing by Buyer.
8. **Property Inspections and Access.** Buyer shall have the right to conduct inspections, investigations, tests, surveys, and other studies ("Buyer's Inspections") at Buyer's expense. Access to property also shall be granted to Buyer - including Buyer's partners, contractors, property inspectors, and lenders - with a key (if vacant). Property is sold "AS IS," in its present condition, without warranty. Seller shall not be responsible for making corrections or repairs of any nature. Buyer retains the right to disapprove the condition of the Property based upon items discovered in Buyer's Inspections.
9. **Cancellation.** Buyer shall have the right to cancel this Agreement prior to Closing if title and/or the physical condition of the Property is not satisfactory to Buyer. Buyer will notify the Seller about cancellation in writing. Seller agrees to sign a mutual release and cancellation instructions authorizing the return of the earnest money deposit to Buyer.
10. **Possession and Keys.** Seller shall deliver possession and occupancy of the Property to Buyer on the date of recordation of the deed at 5:00 p.m. Property shall be vacant unless otherwise agreed in writing. Seller shall provide keys and/or means to operate all property locks, mailboxes, security systems, alarms, garage door openers, and homeowners' association facilities, if any. Any personal items, furniture, or debris will be removed from the Property prior to Closing except as agreed below.
11. **Buyer Marketing.** Seller grants Buyer the right to market the property to potential investors or buyers on social media, and other online and offline platforms by owner.
12. **Final Inspection.** Buyer shall have the right to make a final inspection of the Property approximately two (2) calendar days prior to Close of Escrow to confirm that the Property is otherwise in substantially the same condition as on the date this Agreement is signed.
13. **Solar / Energy System.** If the Property is subject to any solar lease, power purchase agreement (PPA), financing, UCC filing, or other third-party agreement relating to solar panels or energy systems, Seller shall be solely responsible for all obligations thereunder through Closing. At Buyer's election, Seller shall either (i) pay off such agreement prior to or at Closing, or (ii) authorize Escrow to deduct any required payoff from Seller's proceeds to release any related lien or encumbrance. Buyer shall not be required to assume any such agreement unless agreed to in writing.
14. **Risk of Loss.** All risk of loss to the Property which occurs after the offer is accepted shall be borne by Seller until either the title has been transferred, or possession has been given to Buyer, whichever occurs first.

15. **Remedies.** If Seller fails or refuses to perform Seller's obligations under this Agreement, including conveying title and transferring possession to Buyer, Buyer may either: (a) cancel the Agreement and recover all deposits and other amounts paid by Buyer under this Agreement, and all expenses paid or incurred; or (b) pursue any available remedies at law or in equity, including an action to compel specific performance of this Agreement, or one for damages for breach, separately or alternatively. If the Buyer breaches any obligation under this Agreement, Seller shall retain, as liquidated damages for breach of contract, the deposit actually paid. Cancellation pursuant to para. 9 is not a breach by Buyer. In any action or legal proceeding between Buyer and Seller arising out of this Agreement, the prevailing party shall be entitled to reasonable attorney's fees and costs.
16. **Assignability.** Buyer has an unqualified right to assign its rights under this contract to a third party. No notice to the Seller of an assignment is necessary. Such an assignment will create a novation and release the original Buyer from this contract and substitute the assignee in its place.
17. **Applicable Law.** The state laws of California shall govern this Agreement and the parties with respect to any disputes if they arise.
18. **Severability.** In the event that any one or more of the provisions contained herein, or the application thereof in any circumstances, is held invalid, illegal or unenforceable, the validity, legality and enforceability of any such provision in every other respect and of the remaining provisions contained herein shall not be affected or impaired thereby.
19. **Buyer's Settlement Statement.** Seller authorizes the Escrow Company to provide Buyer with a copy of Seller's settlement statement.
20. **Entire Contract; Changes.** All prior agreements between the parties are incorporated in this Agreement which constitutes the entire contract. Its terms are intended by the parties as a final, complete and exclusive expression of their agreement with respect to its subject matter and may not be contradicted by evidence of any prior agreement or contemporaneous oral agreement. The captions in this Agreement are for convenience of reference only and are not intended as part of this Agreement. This Agreement may not be extended, amended, modified, altered, or changed in any respect whatsoever except by a further agreement in writing signed by Buyer and Seller.
21. **Disclosures.** Buyer is a real estate investment company that may enter into an agreement to resell this property for a profit, before or after Closing.
22. **SPECIAL STIPULATIONS:**

Dated: _____

Buyer: **LRG Homes, LLC**, by its authorized representative

_____
Signature

Name: Ryan LaRocca

Tel: (408) 500-6293

Email: ryan@lrghomes.com

Dated: _____

Seller: _____
Signature

Name: _____

Tel: _____

Email: _____